

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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LUIS DE LA TORRE,

Plaintiff,

SUMMONS

-against-

THE CITY OF NEW YORK, P.O. WAI NAING,
P.O. ALEXANDRA MELTON and
SGT. ETHAN CHAN,

Defendants.

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve your answer on Plaintiff's attorney within 20 days after service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York). If you fail to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Plaintiff designates Queens County as the venue for trial based on the location of the incident.

Dated: Forest Hills, NY
April 25, 2024

Yours, etc.,



Law Office of Michael Dreishpoon, P.C.
Michael Dreishpoon, Esq.
Attorneys for Plaintiff
LUIS DE LA TORRE
118-35 Queens Blvd., Ste. 1500
Forest Hills, NY 11375
718-793-5555

DEFENDANTS' ADDRESSES:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

P.O. WAI NAING
109th Precinct
37-05 Union St.
Flushing, NY 11354

P.O. ALEXANDRA MELTON
109th Precinct
37-05 Union St.
Flushing, NY 11354

SGT. ETHAN CHAN
109th Precinct
37-05 Union St.
Flushing, NY 11354

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
LUIS DE LA TORRE,

Plaintiff, **VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, P.O. WAI NAING,
P.O. ALEXANDRA MELTON and
SGT. ETHAN CHAN

Defendants.

-----X

Plaintiff, LUIS DE LA TORRE, by his attorneys, the Law Office of Michael Dreishpoon,
P.C., complaining of the Defendants, alleges, upon information and belief, as follows:

1. At all times herein mentioned, Plaintiff, LUIS DE LA TORRE, was and remains a resident of Queens County, NY.
2. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, was and remains a domestic municipal corporation duly organized and existing under, and by virtue of, the laws of the State of New York.
3. At all times herein mentioned, Defendant, P.O. WAI NAING (Shield # 960994), was an employee of the New York City Police Department (hereinafter "the NYPD").
4. At all times herein mentioned, Defendant, P.O. ALEXANDRA MELTON (Shield #975026), was an employee of the NYPD.
5. At all times herein mentioned, Defendant, SGT. ETHAN CHAN (Shield #956512), was an employee of the NYPD.
6. At all times herein mentioned, Defendant, THE CITY OF NEW YORK,

maintained, managed, supervised, and controlled the NYPD as part of, and in conjunction with, its municipal functions.

7. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, employed and supervised the above-named officers.
8. The above-named officers are graduates of the NYPD's Police Academy.
9. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, had the duty to competently and sufficiently train, within the Police Academy and at the command, precinct, and patrol levels, the above-named officers, and to conform their conduct to a standard for the protection of individuals such as Plaintiff against the unreasonable risk of harm by conducting themselves in such a manner so as to not intentionally, wantonly and/or negligently injure citizens such as Plaintiff.
10. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, had the duty to competently and sufficiently train, within the Police Academy and at the command, precinct, and patrol levels, the above-named officers in the protection of the rights of Plaintiff under the Constitution of the United States of America.
11. Upon information and belief, at all times herein mentioned, the above-named officers were acting in their capacity as employees, agents, and/or servants of Defendant, THE CITY OF NEW YORK.
12. At all times hereinafter mentioned, Defendants were acting under the color of state law and their acts constituted "state action."
13. Plaintiff served a Notice of Claim on THE CITY OF NEW YORK on December 7, 2023 and testified at a General Municipal Law § 50-h hearing on March 26,

2024. More than thirty days have elapsed since the claims upon which this action is based were presented to THE CITY OF NEW YORK, which has neglected and/or refused to make payment or adjustment thereof.

14. At all times herein mentioned, Defendants owed Plaintiff a special duty beyond what was owed to the public generally, and breached this special duty by committing the acts and omissions described herein.
15. Plaintiff's damages on each of the following causes of action exceed the jurisdictional limits of New York States's lower courts.

**FIRST CAUSE OF ACTION:
FALSE ARREST UNDER
42 U.S.C. § 1983 & STATE LAW**

16. On September 10, 2023, at approximately 8:00 P.M., Plaintiff exited his home at 140-11 32nd Ave., Flushing, NY 11354 because the NYPD was towing a vehicle owned by his brother's company.
17. Plaintiff showed the documents to P.O. WAI NAING and P.O. ALEXANDRA MELTON proving that the vehicle was owned by his brother's company.
18. One of the officers stated that the license plate on the vehicle was fake.
19. Plaintiff insisted that the paperwork that he produced proved that the Florida dealer plate on the vehicle was legitimate.
20. Soon thereafter, P.O. ALEXANDRA MELTON hand-cuffed Plaintiff with his arms behind his back.
21. A little while later SGT. ETHAN CHEN arrived and told the officers to arrest Plaintiff.
22. The officers placed Plaintiff under arrest.

23. The officers transported Plaintiff to the 109th Precinct.
24. Plaintiff was processed, fingerprinted and placed in a jail cell.
25. At some point thereafter, Defendant, P.O. ALEXANDRA MELTON signed a Criminal Complaint falsely accusing Plaintiff of Criminal Possession of a Forged Instrument in the Third Degree.
26. Plaintiff remained in police custody for a bit more than 24 hours.
27. Upon information and belief, Plaintiff was arraigned around 11:40 P.M. on September 11, 2023 (Dkt. # CR-026515-23QN) and charged with the aforementioned offense.
28. Plaintiff was released on his own recognizance and the case was adjourned to December 5, 2023 in Courtroom AP-1.
29. On December 5, 2023, the case was adjourned to March 6, 2024.
30. On March 6, 2024, Plaintiff accepted an adjournment in contemplation of dismissal with the knowledge that the case will be dismissed and sealed on September 5, 2024. A copy of the Certificate of Disposition is attached hereto as Exhibit 1.
31. Plaintiff was wholly innocent of all charges, and THE CITY OF NEW YORK and its police department lacked probable cause or reasonable suspicion to justify arresting and prosecuting Plaintiff, but proceeded to arrest and prosecute him nonetheless.
32. Defendants' above-mentioned actions were done without probable cause, just cause, reasonable grounds, justification or provocation.
33. By reason of Defendants' foregoing acts, Plaintiff was caused to suffer loss of

liberty, loss of earnings, emotional anguish, distress and embarrassment, and upon information and belief, will continue to suffer same.

34. On September 10, 2023, at the aforementioned location, Defendants, their agents, servants, and/or employees wrongfully and falsely apprehended and detained Plaintiff without any right or grounds therefor, without any warrant or other legal process, without authority of the law, and without any reasonable cause or belief that Plaintiff was guilty of having committed any crimes.
35. Defendants, and/or their agents, servants and/or employees, wrongfully, unlawfully, and without probable or reasonable cause, violently apprehended, handcuffed, restrained, detained, and with full force of arms, laid hold of and compelled Plaintiff to be detained at the 109th Precinct and criminal courthouse.
36. Defendants, their agents, servants, and/or employees, as set forth above, intended to confine Plaintiff, Plaintiff was conscious of the confinement, Plaintiff did not consent to the confinement, and the confinement was not otherwise privileged.
37. By reason of the foregoing false arrest, Plaintiff was subjected to indignity, humiliation, ridicule, loss of liberty, and the violation of Plaintiff's rights under federal and state law.

**SECOND CAUSE OF ACTION:
MALICIOUS PROSECUTION UNDER
42 U.S.C. § 1983 & STATE LAW**

38. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth herein.
39. Plaintiff was wholly innocent of the charges that Defendants alleged he committed, yet was forced to submit to court proceedings.

40. More specifically, Defendants, their agents, servants and/or employees falsely, maliciously, and without probable cause or provocation alleged that Plaintiff committed the crime of Criminal Possession of a Forged Instrument in the Third Degree.
41. Defendants commenced and continued the aforementioned criminal proceeding against Plaintiff, the criminal proceeding terminated in Plaintiff's favor, there was an absence of probable cause for the commencement or continuation of the criminal proceeding, and Defendants acted with actual malice in doing so.
42. By reason of the foregoing malicious prosecution, Plaintiff was subjected to indignity, humiliation, ridicule, loss of liberty, and the violation of Plaintiff's rights under federal and state law.

**THIRD CAUSE OF ACTION:
NEGLIGENT HIRING/TRAINING/RETENTION
UNDER 42 U.S.C. § 1983 & STATE LAW**

43. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth herein.
44. Defendant, THE CITY OF NEW YORK, was negligent in its operation, management, hiring, supervision, retention, and control of its police department, as well as in the training and conduct of the individually named defendants, as well as the other officers involved.
45. As a result of the above-mentioned negligence, NYPD officers, including P.O. WAI NAING, P.O. ALEXANDRA MELTON and SGT. ETHAN CHAN, falsely imprisoned and maliciously prosecuted Plaintiff.
46. The actions of the individual defendants complained of were part of the custom,

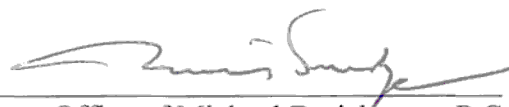
practice, usage, regulation, and/or direction of Defendant, THE CITY OF NEW YORK.

47. Defendant, THE CITY OF NEW YORK, failed to properly screen, hire, train, supervise, and discipline their employees, including the individual defendants complained of, with regard to their propensity for, inter alia, false imprisonment and malicious prosecution.

WHEREFORE, Plaintiff demands judgment in an amount currently believed to exceed the jurisdictional limits of all lower courts which otherwise would have jurisdiction over this matter on each Cause of Action, together with the costs and disbursements of this action.

Dated: Forest Hills, NY
April 25, 2024

Yours, etc.,



Law Office of Michael Dreishpoon, P.C.
Michael Dreishpoon, Esq.
Attorneys for Plaintiff
LUIS DE LA TORRE
118-35 Queens Blvd., Ste. 1500
Forest Hills, NY 11375
718-793-5555

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

ss.:

COUNTY OF QUEENS)

I, LUIS DE LA TORRE, affirm this 25 day of April, 2024, under penalties of perjury under the law of New York, which may include fine or imprisonment, that the following is true, and I understand that this document may be filed in an action or proceeding in a court of law.

(1) I am the plaintiff in the within action.

(2) I have read the foregoing Verified Complaint and know that the contents thereof are true and accurate.

(3) As to those matters therein stated to be alleged upon information and belief, I believe them to be true.


LUIS DE LA TORRE